(ii) The second major aspect of judicial activism in India is the field of interpretation of fundamental rights, particularly the right to equality (Article 14), the right to freedom (Article 19) and the right to life and personal liberty (Article 21). The courts have expanded the scope of these rights in their discretion and interpretation of the constitution.

JUDICIAL REVIEW AND JUDICIAL ACTIVISM

The concepts of judicial review and judicial activism are closely related to each other. But, there is a difference between them. The following points bring out this difference:

1. Since about the mid-20th century, a version of judicial review has acquired the nick-name of judicial activism, especially in the USA. In India, the participants in the debate mix up judicial activism with judicial review. The former is that form of latter in which judges participate in law-making policies, i.e., not only they uphold or invalidate laws in terms of constitutional provisions, but also exercise their policy preferences in doing so.[3e]



2. The concept of judicial review is the interpretation of the law in the light of constitutional parameters but judicial activism is moulding the law to suit the changing social and economic scenario to make the ideals enshrined in the constitution meaningful and real.[3f]

3. The term "judicial activism" came into currency some time in the twentieth century to describe the act of judicial legislation i.e., judges making positive law. However, there is no standard definition of the term "judicial activism". As a whole it can be said that judicial activism stresses the importance of judicial review and a powerful judiciary in the protection and promotion of certain core rights.[3g]

4. The expanded concept of locus standi in connection with PIL, by judicial interpretation from time-to-time, has expanded the jurisdictional limits of the courts exercising judicial review. This expanded role has been given the title of "judicial activism" by those who are critical of this expanded role of the judiciary.[3h]

5. Judicial activism, as regards constitutional cases, falls under the rubric of what is commonly called judicial review, and at the broadest level, it is any occasion where a court intervenes and strikes down a piece of duly enacted legislation.[3i]

JUSTIFICATION OF JUDICIAL ACTIVISM

According to Dr. B.L. Wadehra, the reasons for judicial activism are as follows:[4]

(i) There is near collapse of the responsible government, when the Legislature and Executive fail to discharge their respective functions. This results in erosion of the confidence in the Constitution and democracy amongst the citizens.

(ii) The citizens of the country look up to the judiciary for the protection of their rights and freedoms. This leads to tremendous pressure on judiciary to step in aid for the suffering masses.